

Court No. - 32

Case :- WRIT - C No. - 41080 of 2018

Petitioner :- Sri Krishna Chikitsalaya

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Gaurav Maurya

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

This writ petition has been filed, interalia, for the following reliefs:

"(1) Issue a writ, order or direction in the nature of mandamus commanding the Executive Engineer/respondent no. 3 to decide the grievances of the petitioner (towards the rectification of the electricity bill including surcharge etc) under Clause 6.5 of U.P. Electricity Supply Code, 2005 expeditiously preferably within stipulated period."

Heard learned counsel for the petitioner, Mr. Mahbood Ahmad, learned counsel appearing on behalf of the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10

days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

The Writ Petition is accordingly disposed of.

Order Date :- 13.12.2018

Arun